

From No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH
MULTAN.
JUDICIAL DEPARTMENT
I.C.A. No.268 of 2015.
Malik Nasir Mehmood.
Versus
District Transport Officer etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
-----------------------------------	------------------------------	---

10.06.2015. Mr. Sajjad Hussain Sipra, Advocate for the appellant.
Mr. Abdul Salam Alvi, Advocate for the respondent
“on watching brief”.

Through this Intra Court Appeal, the appellant has assailed order dated 04.06.2015 passed by learned Single Judge in Chambers, whereby his writ petition was held to be not maintainable and without merit, with following observations:-

“- - - - - Admittedly, the petitioner has already filed a declaratory suit to establish his status, which is still pending and his application for temporary injunction was dismissed by the court below. Now, CR No.96/2015 has been filed by the petitioner before this Court. The petitioner may agitate his remedy before the appropriate forum. Moreover, he is also at liberty to participate in the open auction proceedings being carried out by the respondents and writ jurisdiction cannot be invoked merely on apprehension. Moreover, it is the prerogative of the respondents to run their business affairs according to their policy and it settled law that writ cannot be issued against policy matters.

4. Consequently, this writ petition is neither maintainable nor has any merit, which is accordingly **dismissed in limine.**”

2. Learned counsel for the appellant contends that the appellant is plying buses from Bay No.4 of General Bus Stand, Multan, but respondent No.4 has got issued proclamation in the newspaper for renting out the said Bay, for which he has no authority and the same would amount to bring monopoly of one Transport Company. Further contends that the fundamental rights of appellant, including the right of life and business, have been seriously offended, so, the writ petition was maintainable as there was no efficacious remedy available to him.

3. On the other hand, learned counsel for the respondent, at the very outset, has objected the maintainability of this I.C.A. on the ground that the impugned actions were appealable in terms of rule 267 of Punjab Motor Vehicle Rules, 1969 and section 190 of Punjab Local Government Ordinance, 2001. Thus, the instant I.C.A. is not maintainable and liable to be dismissed.

4. Heard.

5. The most relevant Rule 267 of Motor Vehicles Rules, 1969 reads as follows:-

“(1) Any person aggrieved by an order of the Regional Transport Authority sanctioning the establishment of a stand or revoking or modifying an order permitting the establishment of a stand, may, within thirty days of the receipt of the order, appeal, to the appellate authority as prescribed in rule 96, whose orders thereon shall be final and conclusive.

(2) All orders by a Regional Transport Authority permitting any place to be used for the loading, unloading or halting of motor vehicles used for carriage of goods for hire or rewards, or revoking or modifying any such order, shall be appealable to the appellate authority as prescribed in rule 96, whose orders thereon shall be final and conclusive.

(3) The appellate authority, before passing an order under sub-rule (1) or sub-rule (2), as the case may be, shall give the appellant or any other persons affected by the order, opportunity of being heard.”

The provisions of section 190 of the Punjab Local Government Ordinance, 2001 also provide remedy of appeal, which is reproduced hereunder:-

“Appeals.—Any person aggrieved by any order passed by a local government or its functionaries, in pursuance of this Ordinance or the rules or bye-laws made thereunder may appeal to such authority in such manner and within such period as may be prescribed.”

The Proviso to sub-section (2) of section 3 of Law Reforms Ordinance, 1972 is also replicated below:-

“(2) An appeal shall also lie to a Bench of two or more Judges of a High Court from an order made by a Single Judge of that Court under [clause (1) of Article 199 of the Constitution of the Islamic Republic of Pakistan] not being an Order made under sub-paragraph (i) of paragraph (b) of that clause:

Provided that the appeal referred to in this sub-section shall not be available or competent if the application brought before the High Court under Article [199] arises out of any proceedings in which the law applicable, provided for at least one appeal [or one revision or one review] to any Court, Tribunal or authority against the original order.”

The above Proviso vividly bars the remedy of I.C.A. if the relevant law provides remedy of appeal, review or revision. Thus, the I.C.A. is not maintainable before this court. In this regard, reference can be made to the case law reported in following cases:-

- i. *“Muhammad Aslam Sukhera Vs. Collector Land Acquisition, Lahore, Improvement Trust, Lahore and another” (PLD 2005 SC 45)*
- ii. *“Akbar Ali Vs. Additional I.G. Police and others” (2011 YLR 2497)*
- iii. *“Muhammad Ameer Azam and 3 others Vs. Islamia University Bahawalpur and 5 others” (2011 PLC (C.S.) 1227)*
- iv. *“Vice Chancellor, University of Health Sciences Vs. Breeha Zainab and others” (2011 MLD 1652)*
- v. *“Bashir Ahmad Vs. Board of Intermediate and Secondary Education, Multan through Chairperson and 3 others” (2013 PLC (C.S.) 752)*
- vi. *“Dr. Kiran Qadir Vs. Maj. Dr. Muhammad Ali Yousaf Khan” (PLD 2014 Lahore 17)*

6. The Hon’ble Supreme Court of Pakistan, in case of Muhammad Aslam Sukhera supra has made the following observations:-

“- - - - - The object of Proviso to subsection (2) of section 3 of the Ordinance, 1972, seems to be to bar the remedy of Intra-Court Appeal in those cases in which the relevant law provides the remedies of appeal, revision or review.”

7. In view of the aforesaid, this I.C.A. is not maintainable and the same is hereby **dismissed in limine.**

(Amin-ud-Din Khan)
Judge

(Muhammad Sajid Mehmood Sethi)
Judge

Approved for reporting.